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MUTUAL NON-DISCLOSURE AND INTELLECTUAL PROPERTY ASSIGNMENT AGREEMENT

This Mutual Non-Disclosure and Intellectual Property Assignment Agreement (·Agreement·) is entered into as of January 15, 2025 (·Effective Date·), by and between NexaBridge Technologies, Inc., a Delaware corporation with principal offices located at 412 West Street, New York, NY 10014 (·NexaBridge·), and Orionis Solutions LLC, a New York limited liability company with principal offices at 123 Madison Avenue, New York, NY 10010 (·Orionis·). NexaBridge and Orionis are each referred to herein as a ·Party· and collectively as the ·Parties·.

RECITALS

WHEREAS, the Parties desire to explore a potential business relationship regarding the development and commercialization of certain software and hardware solutions as further described in Exhibit A attached hereto (the ·Purpose·);

WHEREAS, in connection with such discussions and potential collaboration, the Parties recognize that it is necessary to disclose to each other certain Confidential Information (as defined below) and to clarify their respective rights in intellectual property, including existing and future inventions, developments, and work products;

NOW, THEREFORE, in consideration of the mutual covenants contained herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. Definitions

1.1 ·Confidential Information· means any and all information disclosed by one Party (·Disclosing Party·) to the other Party (·Receiving Party·), either directly or indirectly, in writing, orally, or by inspection of tangible objects (including without limitation documents, prototypes, samples, models, or equipment), that is designated as confidential or proprietary or that reasonably should be understood to be confidential under the circumstances, including without limitation business plans, technical data, software, inventions, specifications, drawings, processes, designs, formulas, technical information, research, development, know-how, designs, and trade secrets.

1.2 ·Work Product· means all inventions, discoveries, developments, improvements, innovations, know-how, designs, technology, software (object code, source code, or other), documentation, reports, data, ideas, and other intellectual property, whether or not patentable or copyrightable, that are conceived, developed, or reduced to practice by or on behalf of a Party either solely or jointly with others, arising from or related to the Purpose.

1.3 ·Pre-Existing Intellectual Property· means any intellectual property owned or controlled by a Party prior to the Effective Date, including inventions, software, works of authorship, patents, trademark rights, trade secrets, and any other proprietary materials or rights, disclosed or used in connection with the Purpose.

2. Confidentiality Obligations

2.1 Non-Use and Non-Disclosure. The Receiving Party shall (a) maintain all Confidential Information in strict confidence using at least the same degree of care it uses to protect its own confidential information of a similar nature, but in no event less than reasonable care; (b) not disclose any Confidential Information to any third parties except to employees, contractors, and representatives who have a legitimate need to know and who are bound by confidentiality obligations no less restrictive than those herein; and (c) not use any Confidential Information for any purpose other than the Purpose.

2.2 Exceptions. Confidential Information shall not include information that (a) is or becomes publicly known without breach of this Agreement; (b) is rightfully received from a third party without restriction and without breach of a confidentiality obligation; (c) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; or (d) is required to be disclosed pursuant to applicable law or court order, provided

that the Receiving Party gives prompt written notice to the Disclosing Party to allow it to seek protective relief.

2.3 Duration. The confidentiality obligations under this Section 2 shall survive termination or expiration of this Agreement for a period of five (5) years.

3. Intellectual Property Ownership and Assignment

3.1 Ownership of Pre-Existing Intellectual Property. Each Party shall retain all right, title, and interest in and to its Pre-Existing Intellectual Property. Nothing in this Agreement shall grant, by implication, estoppel, or otherwise, any rights in the other Party's Pre-Existing Intellectual Property except as expressly set forth in writing.

3.2 Ownership and Assignment of Work Product.

(a) Jointly Created Work Product. All Work Product conceived or developed jointly by or on behalf of the Parties in furtherance of the Purpose (-Joint Work Product-) shall be jointly owned by the Parties as tenants in common, with each Party having an undivided fifty percent (50%) interest therein, unless otherwise mutually agreed in writing.

(b) Solely Created Work Product. Work Product created solely by or on behalf of a Party shall be owned exclusively by that Party.

3.3 Assignment of Work Product. To the fullest extent permitted by law, each Party hereby assigns, transfers, and conveys to the other Party all right, title, and interest in and to all Work Product created by such Party that relates to the Purpose, including all patent, copyright, trade secret, and other intellectual property rights therein (-Assignment-). Each Party agrees to execute and deliver, at the reasonable request and expense of the other Party, any documents necessary to perfect or enforce such rights, including without limitation assignments, applications or registrations, and other instruments.

3.4 Pre-Existing Intellectual Property License. Each Party grants to the other a non-exclusive, royalty-free, worldwide license to use its Pre-Existing Intellectual Property solely as necessary to carry out the Purpose during the term of this Agreement.

4. Term and Termination

4.1 Term. This Agreement shall commence on the Effective Date and shall continue in effect for a period of three (3) years unless earlier terminated as provided herein.

4.2 Termination for Convenience. Either Party may terminate this Agreement upon thirty (30) days' prior written notice to the other Party.

4.3 Effect of Termination. Upon expiration or termination, each Party shall promptly return or destroy all Confidential Information of the other Party, except that each Party may retain one archival copy solely for compliance and legal defense purposes. The provisions of Sections 2, 3.3, 5, 6, and 7 shall survive termination.

5. Remedies

5.1 Monetary Damages. The Parties acknowledge that breach of confidentiality or intellectual property provisions may cause irreparable harm not adequately compensable by monetary damages. Accordingly, the Parties agree that, in addition to any other remedies available at law or equity, the non-breaching Party shall be entitled to seek injunctive relief.

5.2 Indemnification. Each Party agrees to indemnify, defend, and hold harmless the other Party against any losses, damages, liabilities, costs, or expenses (including reasonable attorneys' fees) arising out of any claim that the indemnifying Party's breach of this Agreement or infringement of any intellectual property rights caused harm to the other Party or any third party.

6. Miscellaneous

6.1 No License Except as Provided. Except as expressly set forth in this Agreement, no license or right is granted by either Party to the other under any patent, copyright, trademark, trade secret, or other intellectual property right.

6.2 No Obligation to Proceed. Nothing in this Agreement obligates either Party to proceed with any transaction or business relationship, or to disclose any particular information.

6.3 Entire Agreement; Amendments. This Agreement constitutes the entire agreement between the Parties regarding the subject matter herein and supersedes all prior discussions and agreements. Any amendment or modification must be in writing and signed by authorized representatives of both Parties.

6.4 Waiver. Failure to enforce any provision shall not constitute a waiver of that provision or any other provision.

6.5 Severability. If any provision is determined unenforceable, the remainder of this Agreement shall remain in full force and effect.

6.6 Assignment. Neither Party may assign or transfer any rights or obligations under this Agreement without the prior written consent of the other Party, except to a successor entity in connection with a merger or acquisition.

6.7 Notices. All notices shall be in writing and shall be deemed given when delivered personally, sent by certified mail (return receipt requested), or by recognized overnight courier service, to the addresses set forth above or such other address as either Party may designate by notice.

6.8 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the State of New York without regard to conflicts of law principles. The Parties agree that any disputes arising out of or related to this Agreement shall be brought exclusively in the state or federal courts located in New York County, New York, and consent to the personal jurisdiction of such courts.

6.9 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their respective duly authorized representatives as of the Effective Date.

NexeBridge Technologies, Inc.

Orionis Solutions LLC

By: _____

By: _____

Name: Alexandra Reid

Name: Marcus L. Chen

Title: Chief Legal Officer

Title: Managing Member

Date: January 15, 2025

Date: January 15, 2025

[EXHIBIT A · PURPOSE DESCRIPTION]

Description of Purpose: Exploration of collaboration opportunities related to the joint development of a modular IoT device platform and associated cloud-based analytics software to be integrated for industrial automation applications, including development of prototypes, proof-of-concept demonstrations, and potential joint marketing efforts.

End of Agreement.